



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2533: homeless services; office; board

FINK FLOOR AMENDMENT

1. Removes provisions relating to the creation and procedures of the Property Loss Homelessness Compensation Fund.
2. Removes provisions relating to employing an ombudsman dedicated to the Office of Homeless Services (Office).
3. Directs the Office Director to employ an ombudsman to assist with the Office's duties.
4. Requires the ombudsman to provide information to and assist Arizonan qualified property owners with applying for a refund relating to public nuisance on the property owner's real property.

FINK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2533
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 27, article 2, Arizona Revised
3 Statutes, is amended by adding section 41-3030.27, to read:

4 41-3030.27. Office of homeless services; termination July 1,
5 2030

6 A. THE OFFICE OF HOMELESS SERVICES TERMINATES ON JULY 1, 2030.

7 B. TITLE 41, CHAPTER 37, ARTICLE 6 AND THIS SECTION ARE REPEALED ON
8 JANUARY 1, 2031.

9 Sec. 2. Title 41, chapter 37, Arizona Revised Statutes, is amended
10 by adding article 6, to read:

11 ARTICLE 6. OFFICE OF HOMELESS SERVICES

12 41-4101. Definitions

13 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

14 1. "BOARD" MEANS THE ARIZONA HOMELESS SERVICES BOARD.

15 2. "CONTINUUM OF CARE ORGANIZATION" MEANS A REGIONAL OR LOCAL
16 PLANNING BODY DESIGNATED BY THE UNITED STATES DEPARTMENT OF HOUSING AND
17 URBAN DEVELOPMENT.

18 3. "DIRECTOR" MEANS THE DIRECTOR OF THE OFFICE.

19 4. "EXECUTIVE COMMITTEE" MEANS THE EXECUTIVE COMMITTEE OF THE
20 BOARD.

21 5. "HOMELESS MANAGEMENT INFORMATION SYSTEM" MEANS AN INFORMATION
22 TECHNOLOGY SYSTEM THAT:

23 (a) IS USED TO COLLECT CLIENT DATA AND DATA ON HOUSING AND SERVICES
24 PROVIDED TO HOMELESS INDIVIDUALS AND INDIVIDUALS AT RISK OF HOMELESSNESS
25 IN THIS STATE.

26 (b) MEETS THE REQUIREMENTS OF THE UNITED STATES DEPARTMENT OF
27 HOUSING AND URBAN DEVELOPMENT.

1 6. "HOMELESS SERVICES BUDGET" MEANS THE ANNUAL BUDGET AND OVERVIEW
2 OF ALL HOMELESS SERVICES AVAILABLE IN THIS STATE PURSUANT TO SECTION
3 41-4103.

4 7. "OFFICE" MEANS THE OFFICE OF HOMELESS SERVICES.

5 8. "SERVICE PROVIDER" MEANS AN AGENCY IN THIS STATE OR A CITY, TOWN
6 OR COUNTY OR PRIVATE ORGANIZATION IN THIS STATE THAT PROVIDES SERVICES TO
7 INDIVIDUALS WHO ARE EXPERIENCING HOMELESSNESS IN THIS STATE OR WHO ARE AT
8 RISK OF BECOMING HOMELESS.

9 41-4102. Office of homeless services; director; powers and
10 duties

11 A. THE OFFICE OF HOMELESS SERVICES IS ESTABLISHED. THE OFFICE SHALL
12 ASSIST IN PROVIDING HOMELESS SERVICES IN THE STATE.

13 B. THE GOVERNOR SHALL APPOINT THE DIRECTOR PURSUANT TO SECTION
14 38-211. THE DIRECTOR IS ELIGIBLE TO RECEIVE COMPENSATION PURSUANT TO
15 SECTION 38-611. THE OFFICE MAY EMPLOY CLERICAL, PROFESSIONAL AND
16 TECHNICAL PERSONNEL SUBJECT TO CHAPTER 4, ARTICLE 4 OF THIS TITLE AND
17 SHALL PRESCRIBE THEIR DUTIES AND DETERMINE THEIR COMPENSATION PURSUANT TO
18 SECTION 38-611.

19 C. THE OFFICE SHALL:

20 1. COORDINATE HOMELESS SERVICES IN THIS STATE.

21 2. MANAGE, ALONG WITH THE APPROVAL OF CONTINUUM OF CARE
22 ORGANIZATIONS APPROVED BY THE UNITED STATES DEPARTMENT OF HOUSING AND
23 URBAN DEVELOPMENT, A HOMELESS MANAGEMENT INFORMATION SYSTEM IN THIS STATE
24 THAT DOES ALL OF THE FOLLOWING:

25 (a) SHARES DATA WITH SERVICE PROVIDERS IN THIS STATE REGARDING
26 INDIVIDUALS WHO ARE EXPERIENCING HOMELESSNESS IN THIS STATE OR WHO ARE AT
27 RISK OF BECOMING HOMELESS.

28 (b) IS EFFECTIVE AS A CASE MANAGEMENT SYSTEM.

29 (c) EXCEPT FOR INDIVIDUALS RECEIVING SERVICES WHO ARE VICTIMS OF
30 DOMESTIC VIOLENCE, INCLUDES AN EFFECTIVE AUTHORIZATION PROTOCOL FOR
31 ENCOURAGING INDIVIDUALS WHO ARE PROVIDED WITH ANY HOMELESS SERVICES IN
32 THIS STATE TO PROVIDE ACCURATE INFORMATION TO PROVIDERS.

33 (d) MEETS THE REQUIREMENTS OF THE UNITED STATES DEPARTMENT OF
34 HOUSING AND URBAN DEVELOPMENT AND ANY OTHER FEDERAL REQUIREMENTS.

35 D. THE OFFICE MAY APPLY FOR FEDERAL GRANTS, LOANS AND ANY OTHER
36 FEDERAL PROGRAMS TO PROVIDE MONIES FOR THE OFFICE.

37 41-4103. Director; powers and duties; annual report

38 A. THE DIRECTOR SHALL:

39 1. IN COOPERATION WITH THE BOARD, DEVELOP AND MAINTAIN AN ANNUAL
40 HOMELESS SERVICES BUDGET AND OVERVIEW OF ALL HOMELESS SERVICES AVAILABLE
41 TO RESIDENTS IN THIS STATE.

42 2. OVERSEE MONIES PROVIDED FOR HOMELESS SERVICES IN THIS STATE[;
43 ~~INCLUDING THE PROPERTY LOSS HOMELESSNESS COMPENSATION FUND ESTABLISHED BY~~
44 ~~SECTION 41-4105]~~.

45 3. PROVIDE ADMINISTRATIVE SUPPORT TO THE BOARD AND SERVE AS A
46 MEMBER OF THE BOARD.

1 4. AT THE GOVERNOR'S REQUEST, REPORT DIRECTLY TO THE GOVERNOR ON
2 ISSUES REGARDING HOMELESSNESS IN THIS STATE.

3 5. REPORT TO THE PRESIDENT OF THE SENATE AND THE SPEAKER OF THE
4 HOUSE OF REPRESENTATIVES AT LEAST TWICE EACH YEAR ON ISSUES REGARDING
5 HOMELESSNESS IN THIS STATE AND ANY RECOMMENDATIONS FOR IMPROVEMENT.

6 6. ENSURE THAT THE ANNUAL HOMELESS SERVICES BUDGET PURSUANT TO THIS
7 SECTION INCLUDES AN OVERVIEW AND COORDINATION PLAN FOR ALL FUNDING SOURCES
8 FOR HOMELESS SERVICES IN THIS STATE, INCLUDING FROM AGENCIES IN THIS
9 STATE, CONTINUUM OF CARE ORGANIZATIONS, HOUSING AUTHORITIES, LOCAL
10 GOVERNMENTS, FEDERAL SOURCES AND PRIVATE ORGANIZATIONS.

11 7. OUTLINE SPECIFIC GOALS AND MEASURABLE BENCHMARKS FOR MINIMIZING
12 HOMELESSNESS IN THIS STATE AND COORDINATING SERVICES FOR INDIVIDUALS
13 EXPERIENCING HOMELESSNESS AMONG ALL SERVICE PROVIDERS IN THIS STATE.

14 8. IDENTIFY THE BEST PRACTICES OR INNOVATIVE STRATEGIES AND
15 RECOMMEND IMPROVEMENTS FOR INDIVIDUALS EXPERIENCING HOMELESSNESS IN THIS
16 STATE TO ENSURE THE SERVICES ARE PROVIDED IN A SAFE, COST-EFFECTIVE AND
17 EFFICIENT MANNER.

18 9. IDENTIFY BEST PRACTICES OR INNOVATIVE STRATEGIES AND RECOMMEND
19 IMPROVEMENTS IN COORDINATING THE DELIVERY OF SERVICES TO THE VARIETY OF
20 POPULATIONS EXPERIENCING HOMELESSNESS IN THIS STATE, INCLUDING THROUGH THE
21 USE OF ELECTRONIC DATABASES AND IMPROVED DATA SHARING AMONG ALL SERVICE
22 PROVIDERS IN THE STATE.

23 10. IDENTIFY GAPS AND RECOMMEND SOLUTIONS IN THE DELIVERY OF
24 SERVICES TO THE VARIETY OF POPULATIONS EXPERIENCING HOMELESSNESS IN THIS
25 STATE.

26 [11. EMPLOY AN OMBUDSMAN TO ASSIST WITH THE DUTIES OF THE OFFICE.
27 THE OMBUDSMAN SHALL PROVIDE INFORMATION TO AND ASSIST QUALIFIED PROPERTY
28 OWNERS IN THIS STATE WITH APPLYING FOR A REFUND PURSUANT TO SECTION
29 42-17451.]

30 B. IN OVERSEEING FUNDING PURSUANT TO THIS SECTION, THE DIRECTOR:

31 1. SHALL PRIORITIZE THE FUNDING OF PROGRAMS AND PROVIDERS THAT HAVE
32 A DOCUMENTED HISTORY OF SUCCESSFULLY DOING ANY OF THE FOLLOWING:

33 (a) REDUCING THE NUMBER OF INDIVIDUALS EXPERIENCING HOMELESSNESS IN
34 THIS STATE.

35 (b) REDUCING THE TIME INDIVIDUALS SPEND EXPERIENCING HOMELESSNESS
36 IN THIS STATE.

37 (c) MOVING INDIVIDUALS EXPERIENCING HOMELESSNESS TO PERMANENT
38 HOUSING OR REDUCING THE NUMBER OF INDIVIDUALS WHO RETURN TO EXPERIENCING
39 HOMELESSNESS IN THIS STATE.

40 2. EXCEPT FOR A PROGRAM OR PROVIDER PROVIDING SERVICES TO VICTIMS
41 OF DOMESTIC VIOLENCE, MAY NOT APPROVE FUNDING TO A PROGRAM OR PROVIDER
42 THAT DOES NOT ENTER INTO A WRITTEN AGREEMENT WITH THE OFFICE TO COLLECT
43 AND SHARE HOMELESS MANAGEMENT INFORMATION SYSTEM DATA REGARDING THE
44 SERVICES PROVIDED TO INDIVIDUALS EXPERIENCING HOMELESSNESS.

45 C. ON OR BEFORE OCTOBER 1, 2027 AND EACH YEAR THEREAFTER, THE
46 DIRECTOR SHALL SUBMIT A REPORT TO ARIZONA DEPARTMENT OF HOUSING FOR

1 INCLUSION IN THE DEPARTMENT'S ANNUAL WRITTEN REPORT. THE REPORT SHALL
2 INCLUDE ALL OF THE FOLLOWING:

3 1. ALL INFORMATION REGARDING THE HOMELESS SERVICES BUDGET.

4 2. A STRATEGIC PLAN ON HOW TO ADEQUATELY ADDRESS HOMELESSNESS IN
5 THIS STATE.

6 3. RECOMMENDATIONS REGARDING IMPROVEMENTS TO COORDINATING AND
7 PROVIDING SERVICES TO INDIVIDUALS EXPERIENCING HOMELESSNESS IN THIS STATE.

8 4. IN COORDINATION WITH THE BOARD, A COMPLETE ACCOUNTING OF THE
9 OFFICE'S DISBURSEMENT OF MONIES DURING THE PREVIOUS FISCAL YEAR FROM[~~;~~

10 ~~(a) THE PROPERTY LOSS HOMELESSNESS COMPENSATION FUND PURSUANT TO~~
11 ~~SECTION 41-4105.~~

12 ~~(b)] ANY [OTHER]~~ GRANT PROGRAM THAT IS ADMINISTERED BY THE OFFICE.

13 ~~41-4104.~~ Arizona homeless services board; membership; powers
14 and duties; executive committee; annual report

15 A. THE ARIZONA HOMELESS SERVICES BOARD IS ESTABLISHED AND CONSISTS
16 OF THE FOLLOWING MEMBERS:

17 1. A MEMBER WHO IS APPOINTED BY THE PRESIDENT OF THE SENATE.

18 2. A MEMBER WHO IS APPOINTED BY THE SPEAKER OF THE HOUSE OF
19 REPRESENTATIVES.

20 3. A REPRESENTATIVE OF THE PRIVATE SECTOR WHO HAS KNOWLEDGE
21 REGARDING HOMELESSNESS IN THIS STATE AND WHO IS APPOINTED BY THE GOVERNOR.

22 4. THE DIRECTOR OR THE DIRECTOR'S DESIGNEE.

23 5. A STATEWIDE PHILANTHROPIC LEADER WHO IS APPOINTED BY GOVERNOR,
24 BASED ON THE RECOMMENDATION OF AN ORGANIZATION THAT HELPS SUPPORT
25 NONPROFIT ORGANIZATIONS IN THIS STATE.

26 6. AN INDIVIDUAL WHO EXPERIENCED HOMELESSNESS AND WHO IS APPOINTED
27 BY THE GOVERNOR.

28 7. A REPRESENTATIVE OF A NONPROFIT ORGANIZATION THAT REPRESENTS ALL
29 OF THE COUNTY OFFICIALS IN THIS STATE AND WHO IS APPOINTED BY THE
30 GOVERNOR.

31 B. MEMBERS OF THE BOARD, EXCEPT FOR THE DIRECTOR SHALL SERVE
32 FOUR-YEAR TERMS, AND WHEN A VACANCY OCCURS, THE REPLACEMENT IS APPOINTED
33 FOR THE UNEXPIRED TERM IN THE SAME MANNER AS THE INITIAL APPOINTMENT.

34 C. THE BOARD SHALL SELECT A CHAIRPERSON AND VICE CHAIRPERSON FROM
35 AMONG ITS MEMBERSHIP.

36 D. THE BOARD SHALL ELECT FROM ITS OWN MEMBERSHIP A FOUR-MEMBER
37 EXECUTIVE COMMITTEE.

38 E. THE BOARD SHALL MEET QUARTERLY OR AT THE CALL OF THE
39 CHAIRPERSON. THE CHAIRPERSON SHALL PROVIDE NOTICE OF THE MEETING TO THE
40 MEMBERS AT LEAST THREE CALENDAR DAYS BEFORE THE MEETING.

41 F. A MAJORITY OF THE MEMBERS OF THE BOARD CONSTITUTES A QUORUM OF
42 THE BOARD AT ANY MEETING, AND THE ACTION OF THE MAJORITY OF MEMBERS
43 PRESENT CONSTITUTES THE ACTION OF THE BOARD.

1 G. THE EXECUTIVE COMMITTEE IS EXEMPT FROM THE REQUIREMENTS OF TITLE
2 38, CHAPTER 3, ARTICLE 3.1.

3 H. MEMBERS OF THE BOARD ARE NOT ELIGIBLE TO RECEIVE COMPENSATION
4 BUT ARE ELIGIBLE FOR REIMBURSEMENT OF EXPENSES PURSUANT TO TITLE 38,
5 CHAPTER 4, ARTICLE 2.

6 I. THE OFFICE SHALL PROVIDE STAFF AND ADMINISTRATIVE SUPPORT TO THE
7 BOARD.

8 J. MEMBERS OF THE BOARD MAY SERVE MORE THAN ONE TERM.

9 K. THE BOARD SHALL:

10 1. REVIEW LOCAL AND REGIONAL PLANS FOR PROVIDING SERVICES TO
11 INDIVIDUALS EXPERIENCING HOMELESSNESS.

12 2. COOPERATE WITH MUNICIPALITIES IN THIS STATE TO DO ALL OF THE
13 FOLLOWING:

14 (a) DEVELOP A COMMON AGENDA AND VISION FOR REDUCING HOMELESSNESS IN
15 EACH MUNICIPALITY'S RESPECTIVE REGION.

16 (b) DEVELOP A SPENDING PLAN THAT COORDINATES THE FUNDING SUPPLIED
17 TO LOCAL STAKEHOLDERS.

18 (c) ALIGN LOCAL FUNDING TO PROJECTS THAT IMPROVE OUTCOMES AND
19 TARGET SPECIFIC NEEDS IN EACH COMMUNITY.

20 3. COORDINATE FUNDING WITH PRIVATE ENTITIES IN THIS STATE TO
21 PROVIDE SERVICES TO INDIVIDUALS EXPERIENCING HOMELESSNESS.

22 4. RECOMMEND PERFORMANCE AND ACCOUNTABILITY MEASURES FOR SERVICE
23 PROVIDERS, INCLUDING THE SUPPORT OF COLLECTING CONSISTENT AND TRANSPARENT
24 DATA.

25 5. REGULARLY UPDATE THE STRATEGIC PLAN ON HOMELESSNESS PURSUANT TO
26 SECTION 41-4103 TO REFLECT TRENDS IN HOMELESSNESS AS IDENTIFIED BY THE
27 REVIEW OF LOCAL DATA AND PERFORMANCE AND ACCOUNTABILITY METRICS.

28 6. SET ANNUAL STATE AND LOCAL GOALS FOR REDUCING HOMELESSNESS AMONG
29 THE TARGET POPULATIONS IDENTIFIED BY THE BOARD.

30 7. MAKE RECOMMENDATIONS FOR STRATEGIES TO REDUCE ILLEGAL DRUG USE
31 WITHIN HOMELESS SHELTERS, TRANSITIONAL HOUSING AND PERMANENT SUPPORTIVE
32 HOUSING IN THIS STATE.

33 8. FACILITATE CONNECTIONS TO ALTERNATIVE SUPPORT SYSTEMS, INCLUDING
34 BEHAVIORAL HEALTH SERVICES, ADDICTION RECOVERY AND RESIDENTIAL SERVICES
35 FOR INDIVIDUALS WHO ARE EXPERIENCING HOMELESSNESS IN THIS STATE OR
36 INDIVIDUALS WHO ARE AT RISK OF BECOMING HOMELESS.

37 9. FACILITATE PARTICIPATION IN HOMELESS MANAGEMENT INFORMATION
38 SYSTEM AND DATA SHARING AGREEMENTS AMONG ALL PARTICIPANTS, INCLUDING
39 HOMELESS SERVICES, PHYSICAL HEALTH SYSTEMS, MENTAL HEALTH SYSTEMS AND THE
40 CRIMINAL JUSTICE SYSTEM.

41 10. COORDINATE WITH THE CONTINUUM OF CARE ORGANIZATIONS IN THIS
42 STATE TO PROVIDE FOR COOPERATIVE DISTRIBUTION OF AVAILABLE FUNDING.

43 11. WORK WITH THE DIRECTOR, THE DEPARTMENT OF HEALTH SERVICES AND
44 THE STATE DEPARTMENT OF CORRECTIONS TO CREATE THE BEST PRACTICES OR
45 INNOVATIVE STRATEGIES FOR HELPING INDIVIDUALS BEING RELEASED FROM
46 INCARCERATION OR AN INSTITUTION TO AVOID HOMELESSNESS.

1 12. WORK WITH THE DEPARTMENT OF VETERANS' SERVICES TO CREATE THE
2 BEST PRACTICES FOR HELPING VETERANS IN THIS STATE AVOID HOMELESSNESS.

3 13. ESTABLISH RULES AND STANDARDS FOR BEDS LOCATED IN HOMELESS
4 SHELTERS IN THIS STATE, INCLUDING ASSIGNING PRIORITY TO INDIVIDUALS
5 DISCHARGED FROM THE ARIZONA STATE HOSPITAL.

6 L. THE EXECUTIVE COMMITTEE PURSUANT TO THIS SECTION SHALL ACT IN AN
7 ADVISORY CAPACITY FOR THE BOARD AND MAKE RECOMMENDATIONS REGARDING THE
8 BOARD'S DUTIES.

9 M. THE EXECUTIVE COMMITTEE DOES NOT HAVE AUTHORITY TO MAKE
10 DECISIONS INDEPENDENT OF THE BOARD.

11 N. ON OR BEFORE DECEMBER 31, 2027 AND EACH YEAR THEREAFTER, THE
12 BOARD SHALL SUBMIT AN ANNUAL REPORT TO THE GOVERNOR, THE PRESIDENT OF THE
13 SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES THAT INCLUDES ALL
14 OF THE FOLLOWING:

15 1. THE STATE'S YEAR-TO-DATE PROGRESS TOWARD REACHING A FUNCTIONAL
16 ZERO LEVEL OF HOMELESSNESS, INCLUDING:

17 (a) THE NUMBER OF INDIVIDUALS WHO ARE EXPERIENCING HOMELESSNESS FOR
18 THE FIRST TIME.

19 (b) THE NUMBER OF INDIVIDUALS WHO RETURNED TO HOMELESSNESS AFTER
20 HAVING EXITED HOMELESSNESS WITHIN THE TWO PREVIOUS YEARS.

21 (c) THE NUMBER OF INDIVIDUALS WHO REMAINED HOMELESS SINCE THE LAST
22 REPORT, AS APPLICABLE.

23 2. THE PERCENTAGE OF INDIVIDUALS EXPERIENCING HOMELESSNESS WHO:

24 (a) SUFFER FROM ANY OF THE FOLLOWING:

25 (i) A MENTAL HEALTH DISORDER.

26 (ii) SUBSTANCE ABUSE.

27 (iii) A CHRONIC HEALTH CONDITION.

28 (iv) A PHYSICAL DISABILITY.

29 (v) A DEVELOPMENTAL DISABILITY.

30 (vi) HIV VIRUS OR AIDS.

31 (b) ARE ANY OF THE FOLLOWING:

32 (i) SURVIVORS OF DOMESTIC VIOLENCE.

33 (ii) VETERANS.

34 (iii) TWENTY-FOUR YEARS OF AGE OR YOUNGER.

35 3. THE COST PER BED FOR EACH NEW SHELTER, TRANSITIONAL HOUSING OR
36 PERMANENT SUPPORTIVE HOUSING COMPARED TO THE AVERAGE COST OF A SIMILAR
37 FACILITY DURING THE PAST THREE YEARS.

38 4. ANNUAL OPERATING COST PER BED OF A HOMELESS SHELTER, INCLUDING
39 UTILITIES, STAFF AND MAINTENANCE.

40 ~~[41-4105. Property loss homelessness compensation fund; loans~~

41 ~~A. THE PROPERTY LOSS HOMELESSNESS COMPENSATION FUND IS ESTABLISHED~~
42 ~~CONSISTING OF LEGISLATIVE APPROPRIATIONS, GRANTS, GIFTS, CONTRIBUTIONS AND~~
43 ~~DEVICES. THE OFFICE SHALL ADMINISTER THE FUND. MONIES IN THE FUND ARE~~
44 ~~CONTINUOUSLY APPROPRIATED. MONIES MAY BE USED FOR ANY OF THE FOLLOWING:~~

1 ~~1. providing interest-free loans to businesses in this state that~~
2 ~~enter into an agreement with the office to use loan monies for documented~~
3 ~~costs for property loss or for documented costs to mitigate property loss~~
4 ~~as a direct result of the presence of a homeless shelter near the~~
5 ~~business.~~

6 ~~2. Compensating INDIVIDUALS or businesses in this state that are~~
7 ~~located within one fifth of a mile of a homeless shelter and that~~
8 ~~experience property loss as a direct result of the presence of the~~
9 ~~homeless shelter.~~

10 ~~B. The office may adopt rules, policies and procedures to carry~~
11 ~~out the purposes of this section. Eligible applicants shall submit an~~
12 ~~application for a loan on a form prescribed by the office.~~

13 ~~C. INDIVIDUALS and business owners who apply to RECEIVE~~
14 ~~compensation for any damages pursuant to this section must be residents of~~
15 ~~this state.~~

16 ~~D. A business that RECEIVES compensation or a loan from the fund~~
17 ~~pursuant to this section must be in good standing with the department of~~
18 ~~revenue. A BUSINESS shall REPAY THE LOAN NOT LATER THAN ONE YEAR FROM THE~~
19 ~~DAY ON WHICH THE LOAN IS DISBURSED TO THE BUSINESS.~~

20 ~~E. Any loans that are REPAYED to the office under this section shall~~
21 ~~be deposited in the fund.]~~

22 ~~[41-4106. Ombudsman; powers and duties; annual report~~

23 ~~A. The director shall employ an ombudsman to assists with the~~
24 ~~duties of the office.~~

25 ~~B. The ombudsman shall:~~

26 ~~1. provide training and information to agencies in this state,~~
27 ~~private entities, individuals, service providers and other interested~~
28 ~~parties in this state regarding all of the following:~~

29 ~~(a) the rights and privileges of an individual experiencing~~
30 ~~homelessness in this state.~~

31 ~~(b) services available in this state to an individual experiencing~~
32 ~~homelessness and how to submit a complaint.~~

33 ~~2. develop a website to provide the information described in this~~
34 ~~Section in a form that is easily accessible.~~

35 ~~C. The ombudsman may:~~

36 ~~1. decline to investigate a complaint or continue an investigation~~
37 ~~of a complaint.~~

38 ~~2. conduct an investigation on the ombudsman's own initiative.~~

39 ~~3. conduct further investigation on the request of the complainant.~~

40 ~~4. recommend that a complainant pursue other available remedies~~
41 ~~before pursuing a complaint with the ombudsman.~~

42 ~~D. A service provider in this state shall display an ombudsman~~
43 ~~program information poster containing the information described in this~~
44 ~~section in a location that is easily visible to all volunteers and staff~~
45 ~~members.~~

1 ~~e. The office is responsible for providing posters to service~~
2 ~~providers, which shall include a telephone number and a link to the~~
3 ~~website described in this section.~~

4 ~~f. After the ombudsman receives a complaint PURSUANT to this~~
5 ~~section, the ombudsman shall notify the complainant and the office whether~~
6 ~~the ombudsman will investigate the complaint and if the ombudsman decides~~
7 ~~not to investigate the complaint, the reason for the decision.~~

8 ~~g. If the ombudsman decides to investigate a complaint, the~~
9 ~~ombudsman shall determine whether a service provider's act or omission~~
10 ~~regarding a particular client:~~

11 ~~1. is contrary to state or federal law.~~

12 ~~2. places a client's health or safety at risk.~~

13 ~~3. is made without an adequate statement of reason.~~

14 ~~4. is based on irrelevant, immaterial or erroneous grounds.~~

15 ~~h. If the ombudsman determines, after completing the investigation~~
16 ~~pursuant to this section, that a service provider's act or omission~~
17 ~~violates state or federal law, the ombudsman shall prepare a written~~
18 ~~report of the findings and recommendations and provide a copy of the~~
19 ~~report to the claimant, the office and the appropriate county or district~~
20 ~~attorney or the attorney general.~~

21 ~~i. The ombudsman may make recommendations to the office to consider~~
22 ~~policies or procedures that may need to be addressed, modified or canceled~~
23 ~~or any other recommendations necessary to carry out the purposes of this~~
24 ~~article.~~

25 ~~j. On or before October 1, 2027 and each year thereafter, the~~
26 ~~ombudsman shall provide a written report to the office for inclusion in~~
27 ~~the office's annual report pursuant to section 41-4104 that includes all~~
28 ~~of the following:~~

29 ~~1. the total number of complaints filed with the ombudsman.~~

30 ~~2. the number of complaints the ombudsman investigated.~~

31 ~~3. recurring issues among complaints.]~~

32 Sec. 3. Initial terms of the members of the Arizona homeless
33 services board

34 A. Notwithstanding section 41-4104, Arizona Revised Statutes, as
35 added by this act, the initial terms of board members who are appointed
36 pursuant to section 41-4104, subsection A, Arizona Revised Statutes, as
37 added by this act, are:

38 1. Two terms ending January 1, 2030.

39 2. Two terms ending January 1, 2031.

40 3. Two terms ending January 1, 2032.

41 B. All subsequent appointments shall be made as prescribed by law.

1 Sec. 4. Purpose
2 Pursuant to section 41-2955, subsection E, Arizona Revised Statutes,
3 the legislature establishes the office of homeless services to assist and
4 coordinate in providing homeless services in this state.

5 Enroll and engross to conform

6 Amend title to conform

LISA FINK

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